

FIRST ENDORSEMENT

Executive Director Jonathan Darche, Civilian Complaint Review Board, to Deputy Commissioner Paul Gamble, Department Advocate's Office, January 8, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-24741 against Sergeant Steven Counihan, Tax Registry No. 952620. The case was conferenced on September 19, 2023, before Assistant Deputy Commissioner-Trials Vanessa Facio-Lince, who approved the negotiated penalty of forfeiture of fifteen (15) vacation days, after a guilty plea to the two charged Specifications.

Matthew Kadushin

Matthew Kadushin
Acting Executive Director
New York City Civilian Complaint Review Board

DISAPPROVED

JUN 24 2024
Edward A. Caban
EDWARD A. CABAN
POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-24741
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, COUNIHAN	FIRST STEVEN	M.I. A	COMMAND CHIEF OF DEPT OPERATION UNIT
SHIELD NO. 4669	TAX REGISTRY NO. 952620	SOCIAL SECURITY NO.	DATE APPOINTED 07/11/2012	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Sergeant Steven COUNIHAN, on or about June 4, 2020, at approximately 1956, while assigned to PSA 7 and on duty, in the vicinity of East 136th Street and Brook Avenue, Bronx County, abused his authority as a member of the New York City Police Department, in that he damaged an individual's property, in that he got on top of an individual's car and damaged the windshield without sufficient legal authority.	PLEADED GUILTY	VACATION DAYS 15.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Sergeant Steven COUNIHAN, on or about June 4, 2020, at approximately 1956, while assigned to PSA 7 and on duty, in the vicinity of East 136th Street Bronx County, wrongfully used force, in that he struck individuals with a baton without police necessity.	PLEADED GUILTY	

DC Brubaker
FIRST DEPUTY COMMISSIONER

2/2/24
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Caban
POLICE COMMISSIONER

6/24/24
DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

April 23, 2024

Re: CCRB Case No. 202004301 (Incident Date: June 4, 2020) involving Sergeant Steven Counihan, Tax No. 952620 (DADS No. 2022-24741)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Sergeant Steven Counihan and has determined that his actions do not warrant the proposed penalty.

With respect to the allegation that he damaged the vehicle, the Police Commissioner believes there is no evidence Sergeant Counihan's action of getting on top of the vehicle caused any damage to the vehicle's windshield. Given the number of civilians in the area and what was occurring at the moment, the link between Sergeant Counihan getting on top of the vehicle, and the damage to the vehicle is weak. Furthermore, from the interviews conducted, CCRB noted that Police Officer Malik McCloud, who has since retired, stated that "as he was getting off the car part of the middle of the front windshield broke." Even if we believe Sergeant Counihan damaged the vehicle, disciplinary action is not appropriate. If Sergeant Counihan damaged the vehicle, it was not intentional nor with malice. This was a chaotic scene, where he went on top of the vehicle in an attempt to help other members of the service. As such, no disciplinary action will be taken for this allegation.

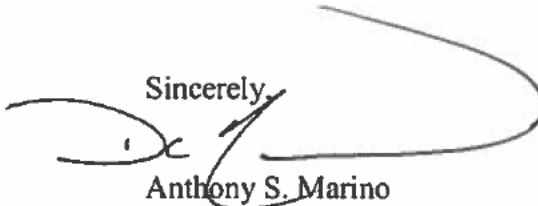
The Police Commissioner agrees with the substantiation of the allegation in regard to the use of force, however he does not believe Charges and Specifications are the appropriate form of discipline. Due to the chaotic and volatile nature of this evening, a mitigated penalty is warranted. Therefore, based on the foregoing, the Police Commissioner intends to dismiss the Charges and Specifications in this matter and direct the issuance of a Schedule "B" Command Discipline for the allegation of force.

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

Furthermore, the Police Commissioner intends to impose no disciplinary action for the allegation that he damaged an individual's property without sufficient legal authority.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: John D'Alessandro, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

June 17, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202004301, DADS No. 2022-24741 (Incident Dates: June 4, 2020)
involving Sergeant Steven Counihan, Tax No. 952620.

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated April 23, 2024. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

On September 19, 2023, in front of Assistant Deputy Commissioner Vanessa Facio-Lince, Sergeant Counihan pled guilty to the Charges and Specifications for a sentence of the forfeiture of fifteen (15) vacation days.

Deputy Chief Marino states that after reviewing the evidence in this case you believe that there is no basis for the charge that Sergeant caused damage to a civilian’s windshield, and further states that you intend to impose no discipline for that charge. Additionally, the letter states that you believe that Charges and Specifications are not appropriate for the wrongful use of force charge and that you intend to instead issue a Schedule “B” Command Discipline for that charge.

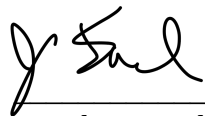
The CCRB disagrees with both your assessment of the evidence and your belief in the appropriate discipline that Sergeant Counihan should receive. As an initial matter, Sergeant Counihan voluntarily pled guilty to both charges and, in so doing, acknowledged responsibility. The evidence demonstrated that Sergeant Counihan and other officers climbed onto a civilian’s vehicle. Prior to this, there was no damage to the vehicle. After the actions of Sergeant Counihan and his fellow officers, there was now damage to the vehicle’s windshield. The damage caused by Sergeant Counihan and his colleagues was inappropriate, regardless of

whether the damage was caused intentionally.

Deputy Chief Marino's letter states that you agreed with the CCRB's substantiation of the allegation that Sergeant Coughlin wrongly used force when he struck individuals with his baton. We disagree with your assessment that these actions, which risked serious injury to civilians, did not warrant the issuance of charges.

The CCRB would ask the Police Commissioner to accept the CCRB's recommendation and penalty that was agreed to by Sergeant Coughlin in his guilty plea and impose upon Sergeant Coughlin the forfeiture of fifteen (15) vacation days for these matters.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "J. Darche", written over a horizontal line.

Jonathan Darche

Executive Director

NYC Civilian Complaint Review Board